

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Limited Civil
Commissioner David Foster
Courtroom 9

627 W. 21st Street, Merced

Thursday, August 20, 2026
10:00 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
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25CV-05972	DNF Associates LLC vs. Ramses Achique
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Order to Show Cause Why Monetary Sanctions Should Not Be Imposed on Plaintiff's Counsel for Failure to Attend Case Management Conference on June 5, 2026

Appearance required.

Case Management Conference

Appearance required.

26CV-00919	Wells Fargo Bank, N.A. vs. Ly So
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Motion to Deem Admitted Requests for Admissions

Plaintiff's unopposed motion for an order deeming admitted the truth of any matters and genuineness of any documents specified in plaintiff's Requests for Admission, Set One, served on defendant Ly So is GRANTED. It is undisputed that Defendant has not served a response to Plaintiff's requests for admission. The Court notes that Plaintiff has not requested monetary sanctions.

The Court will sign the proposed order submitted with the moving papers. The Court confirms the case management conference scheduled for September 11, 2026, at 8:30 a.m. in Courtroom 9.

26CV-02752

Portfolio Recovery Associates, LLC vs. Juan Villegas

Motion to Compel Arbitration

The unopposed motion by defendant Juan Villegas for an order compelling plaintiff Portfolio Recovery Associates, LLC to arbitrate Plaintiff's claims in this action is GRANTED. (Code Civ. Proc., § 1281.2.) Petitioner/Defendant has met his burden of proving by a preponderance of the evidence the existence of a written agreement by the parties to arbitrate Plaintiff's claims in this action. The parties are ordered to binding arbitration. In accordance with the terms of the arbitration agreement, plaintiff has selected the American Arbitration Association as the arbitration provider.

The present action is stayed in accordance with Code of Civil Procedure section 1281.4 pending the outcome of arbitration. The Court sets a review hearing re: status of arbitration on Thursday, February 25, 2027, at 10:00 a.m. in Courtroom 9. The Court has prepared and will sign an order based on the proposed order submitted with the moving papers.

26CV-02930

Justina Sosa vs. Chan Hei

Motion to Vacate Judgment (Small Claims)

Appearance required. The parties should be prepared to proceed with trial.
